

# Mohd. Mansoor v. State of U.P.

Allahabad High Court · Division Bench · 1 August 2014 · Writ-C No. 36442 of 2014 · **Recovery of inflated electricity dues quashed; two months to pay corrected amount.**

## HEADNOTE

Mohd. Mansoor challenged a recovery citation of Rs.1,25,141 as electricity outstanding, contending that assessment at twice the normal tariff violated clause 8.2(vii) of the Electricity Supply Code, 2005, which permits assessment only at one time the tariff. The licensee admitted a calculation mistake and recast dues at Rs.45,194, which the petitioner accepted. The High Court quashed the recovery and directed deposit of the corrected amount within two months, failing which recovery could proceed in accordance with law.

## FACTUAL SUMMARY

Mohd. Mansoor, a class IV Chowkidar, challenged a 4 July 2014 recovery citation for Rs.1,25,141 as electricity outstanding. He contended that the calculation memo assessed dues at twice the normal tariff, contrary to clause 8.2(vii) of the Electricity Supply Code, 2005. After an interim stay of coercive steps, the corporation's counsel, on instructions, admitted a calculation mistake and recast the dues at Rs.45,194. The petitioner accepted that figure and sought time to pay as a poor employee.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::8.2(vii)

assessment of electricity dues at one-time tariff

### HOLDING

On the licensee's admission that assessing outstanding electricity dues at twice the normal tariff was a calculation mistake—the petitioner having invoked clause 8.2(vii) of the Electricity Supply Code, 2005 as permitting assessment only at one time the tariff—the High Court quashed the recovery citation for Rs.1,25,141 and directed the petitioner to deposit the recast dues of Rs.45,194 within two months, failing which the licensee could recover that amount in accordance with law. ¶ 3

## PRINCIPLE TAGS

**clause-8.2x-acquittal-requires-withdrawal-of-theft-assessment**

Mohd. Mansoor challenged a recovery citation of Rs.1,25,141 as electricity outstanding, contending that assessment at twice the normal tariff violated clause 8.2(vii) of the Electricity Supply Code, 2005, which permits assessment only at one time the tariff.. ¶ 3